

25CMCV01844 25CMCV01844

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-02

Motion: (1) DEMURRER TO; AND (2) MOTION TO STRIKE PORTIONS OF, FIRST AMENDED COMPLAINT DATE: September 2, 2026 TIME: 8:30 A.M.

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Case Number: 25CMCV01844 Hearing Date: September 2, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

Dr.

Firpo Wycoff Carr, PhD,

Plaintiff,

vs.

Briana Melendez,

Defendants.

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CASE

NO: 25CMCV01844

[TENTATIVE] ORDER RE: (1) DEMURRER TO; AND
(2) MOTION TO STRIKE PORTIONS OF, FIRST AMENDED COMPLAINT

DATE: September 2, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant

Briana Melendez

Responding Party: Plaintiff

Dr. Firpo Wycoff Carr

Notice: Ok

Tentative Ruling: (1)

Defendant's Demurrer to First Amended Complaint is SUSTAINED WITH 30 DAYS'
LEAVE TO AMEND.

(2)

Defendant's Motion to Strike Portions of First Amended Complaint is DENIED AS

MOOT.

I.

BACKGROUND

This is an action arising from a motor vehicle accident. Plaintiff Dr. Firpo Wycoff Carr alleges that, on November 10, 2023, he was the last car rear-ended in a three-car chain reaction crash on the transition ramp from the I-170 freeway to the I-105 southbound. Plaintiff alleges Defendant Briana Melendez caused the accident by driving at an unsafe speed.

On

October 30, 2025, Carr filed his complaint against Melendez alleging causes of action for: (1) Intentional Infliction of Emotional Distress (“IIED”); and (2) Negligence.

On

March 25, 2026, Melendez filed a Demurrer to Plaintiff’s Complaint and a Motion to Strike Portions of Complaint.

On

May 19, 2026, the Court Sustained Melendez’s Demurrer with 30 days leave to amend and Denied the Motion to Strike. (See Minute Order, 5/19/26.)

On May 20, 2026, Carr filed his First Amended Complaint (the “FAC”), again asserting causes of action for: (1) IIED; and (2) Negligence.

On

June 16, 2026, Melendez filed the instant Demurrer and Motion to Strike the FAC.

On

July 6, 2026, Carr filed a consolidated Opposition.

On July 15, 2026, Melendez filed her Replies.

II.

ANALYSIS

A.

Legal

Standard

1.

Demurrer

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. § 430.10(e).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, *supra*, 147 Cal.App.4th at p. 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

2.

Motion to Strike

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the

whole or any part of the pleading. (Code Civ. Proc., § 435(b)(1).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., §§ 436(a) and (b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782.)

The grounds for moving to strike must appear on the face of the pleadings or by way of judicial notice. (Code Civ. Proc., § 437.) Accordingly, the Court does not consider any extrinsic evidence, including that contained in affidavits, declarations, or deposition transcripts concurrently filed with the moving or opposing papers. (See *Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 21.)

In ruling on a motion to strike, the allegations in the complaint are considered in context and presumed to be true: “[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (Pedus Services, Inc.) (1998) 67 Cal.App.4th 1253, 1255.)

B.

Meet and Confer

Before filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41(a).)

Andre

L. Clark (“Clark”), counsel for Melendez, attaches a declaration attesting to meeting and conferring with Carr by telephone on May 28, 2026. (Clark Decl., ¶ 3.) Clark attests that the parties were unable to resolve their issues regarding the deficiencies in the First Cause of Action. (Id., ¶¶4-7.)

The

Court finds that Melendez has

satisfied the statutory meet and confer requirement.

C.

Discussion

1.

Demurrer

Melendez demurs to Carr's First

Cause of Action for Intentional Infliction of Emotional Distress on the ground that Carr fails to state facts sufficient to constitute a cause of action. Melendez argues Carr's allegations that her driving was "done intentionally for the purpose of intimidating Plaintiff" are unsupported by facts and that the facts demonstrate vehicular negligence at most but cannot constitute the extreme and outrageous conduct required to support a claim for intentional infliction of emotional distress. Melendez also argues that the FAC does not allege facts to show psychological injury of such intensity or duration that no reasonable person should be expected to endure it.

Plaintiff argues in opposition that no reasonable person in a civilized society should be expected to experience the emotional distress of being targeted by someone who has weaponized their vehicle as a battering ram to go through another car to crush Plaintiff's car. (Opp., p. 6:15-21.) Plaintiff also argues that the outrageous conduct is "Defendant's enraged, intentional, deliberate behavior as manifested in aggressively hunting, pursuing, tracking, and stalking Plaintiff as he drove on the I-710 southbound until he reached the transition ramp to the I-105 eastbound, where Defendant angrily plowed into the rear of the car in front of her with such impact that it was demolished as it slammed into Plaintiff's car." (Opp., p. 7:3-8.)

"The elements of a prima facie case

for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009 (citation and ellipses omitted).)

Plaintiff's FAC alleges that, on the night of the accident in question, another driver, Victor Daniel Medina Coronel ("Coronel"), was driving with extremely bright headlights closely and aggressively following [Plaintiff]. [Coronel] would quickly accelerate until they were dangerously close to [Plaintiff's] rear bumper, then suddenly slow down and fade back." (FAC, ¶ 9.) Plaintiff alleges that Coronel repeated this several times. (Id.) Melendez is alleged to have been in a vehicle behind Coronel "with unusually bright, almost blinding headlights, immediately racing behind Coronel." (Id., ¶ 11.) Melendez is also alleged have been driving "aggressively and at an unsafe speed." (Id.) Quoting the traffic collision report, Plaintiff alleges that the accident occurred because Melendez did not notice Coronel suddenly stop in front of her and was not able to apply the brakes before crashing into Coronel (who subsequently crashed into Plaintiff). (Id., ¶ 12.) As quoted by Plaintiff, the traffic collision report indicates that the resulting accident was caused by Melendez driving at an unsafe speed. (Id., ¶ 13.)

Plaintiff continues in the FAC to allege that Melendez's conduct was "done intentionally for the purpose of intimidating Plaintiff by aggressively following him at a dangerous speed which inevitably caused him to be rearended and suffer neck and back painful injuries." (Id., ¶ 18.) Plaintiff further alleges that Melendez's "conduct was undertaken with the intent to injure Plaintiff or with such a willful and conscious disregard of [Plaintiff's] rights and constitutes clear and convincing evidence of despicable, outrageous, oppressive and malicious conduct . . ." (Id., ¶ 20.)

In ruling on a demurrer, the Court must interpret a complaint reasonably, reading it as a whole and considering all parts in their context. (Courtesy Ambulance Serv. v. Superior Court (1992) 8 Cal.App.4th 1504, 1519.) And a judge ruling upon a demurrer does not assume the truth of pleaded deductions, contentions, or conclusions of law or fact. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) Stripped of its invective language, legal conclusions, and factual conclusions, Plaintiff's FAC fails to allege any facts establishing the elements of intentional infliction of emotional distress, including extreme and outrageous conduct done with the intention of causing, or reckless disregard of the probability of causing, emotional distress. Plaintiff alleges a car accident occasioned by reckless

or unsafe driving, something which is unfortunately a regular occurrence in a large city, but nothing more. Plaintiff's argument in opposition that he was "hunted like prey" and that Melendez "weaponized" her vehicle and "used it as a battering ram to go through another car to crush Plaintiff's car" (see Opp., p. 6:16-19) is unsupported by the allegations of the FAC. Again, a read of the FAC without reference to colorful descriptive language reveals what appears to have been a severe accident (most undoubtedly at least for Coronel whose car had to be towed from the scene) but does not reveal any "weaponization" of Melendez's vehicle to destroy Coronel's vehicle in an attempt to get to Plaintiff. And Plaintiff's argument that Melendez aggressively, hunted, pursued, tracked and stalked him (see id., p. 7:5-6.) are also unsupported by the FAC. There are no allegations of a pursuit, much less a lengthy pursuit, no allegations of tracking, no allegations of stalking, and no allegations of "hunting." Even the allegedly "aggressive" behaviors attributed to Melendez – the "unusually bright, almost blinding headlights" and the "racing behind Coronel" - are not alleged to have been directed at Plaintiff; Melendez was admittedly behind Coronel when those actions occurred and Plaintiff provides no substance for his factual conclusion that Melendez's actions were directed at Plaintiff.

In accordance with the above, the Court
SUSTAINS Melendez's Demurrer to Plaintiff's First Cause of Action for Intentional Infliction of Emotional Distress.

D.

Motion to Strike

Melendez moves to strike the following on the grounds that they are irrelevant, immaterial, and improper matter: (1) The portions of Paragraph 20 alleging that Defendant engaged in despicable, outrageous, oppressive, malicious conduct and is liable for punitive damages under Civil Code section 3294; and Plaintiff's Prayer for Relief, First Cause of Action, item (b), which seeks "compensatory and punitive damages according to proof."

The Court has sustained Melendez's Demurrer to Plaintiff's First Cause of Action with leave to amend. Accordingly, Plaintiff's Motion to Strike is DENIED AS MOOT given that there will be an amended pleading.

III.

CONCLUSION

Melendez's Demurrer to Plaintiff's First

Cause of Action for Intentional Infliction of Emotional Distress is SUSTAINED

WITH 30 DAYS' LEAVE TO AMEND. Plaintiff's

SAC is ordered to be filed and served no later than October 2, 2026. In filing his SAC, Plaintiff is cautioned to set forth a factual basis for his allegations.

While a plaintiff only required to plead ultimate facts (see *Birke v.*

Oakwood Worldwide (2009) 169 Cal.App.4th 1402-1410-1411), there must be

some factual basis presented to substantiate the pleaded causes of action. Conclusory allegations are insufficient.

Melendez's Motion to Strike Portions

of Plaintiff's FAC is DENIED AS MOOT.